

Oriental Insurance Company Limited vs Delhi Transport Corporation And on 15 November, 2022

Author: Sandeep Sharma

Bench: Sandeep Sharma

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REPORTABLE

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

ON THE 15th DAY OF NOVEMBER, 2022

BEFORE
HON'BLE MR. JUSTICE SANDEEP SHARMA
FIRST APPEAL FROM ORDER NO.380 OF 2017

Between:

ORIENTAL INSURANCE COMPANY LIMITED,
DIVISIONAL OFFICE, MYTHE ESTATE, UPPER
KAITHU, SHIMLA-3.

(BY MR. G.C.GUPTA, SENIOR ADVOCATE WITH
MS. MEERA DEVI, ADVOCATE)

AND

1. SMT. SHEELA DEVI WIFE OF SHRI TONK

RAM, RESIDENT OF VILLAGE BAD, POST
OFFICE NANDPUR, TEHSIL AND DISTRICT
SHIMLA, H.P.

....APPELLAN

2. SHRI SANJEEV GUPTA, SON OF SHRI RAM

KUMAR GUPTA, RESIDENT OF FRIENDS
COLONY, FBD HOUSE NO.423/22/213
SECTOR-7 DELHI(OWNER OF TRUCK
BEARING REGISTRATION NO.HR-38M-5943)

3. MARYAM ALI SON OF SHRI AHMED,
RESIDENT OF VILLAGE AND POST OFFICE

NADAYALA TEHSIL SAHSWAN, DISTRICT
BADAYU, UP.(DRIVER OF TRUCK BEARING
REGISTRATION NO.HR-38M-5943).

....RESPONDENTS

(BY MR. ANIRUDH SHARMA, ADVOCATE FOR
R-1)

(RESPONDENT NOS. 2 AND 3 EX-PARTE).

JUDGMENT RESERVED ON:20.10.222

This appeal coming on for hearing this day, the Court passed the following:

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JUDGMENT

Instant appeal filed under Section 173 of the Motor Vehicles .

Act (for short 'Act'),lays challenge to award dated 1.04.2017, passed by Motor Accident Claims Tribunal□, Solan, District Solan, H.P., in M.A.C. No.24□/2 of 2015, whereby learned Tribunal below while allowing the claim petition, having been filed by respondent□claimant (hereinafter referred to as the 'claimant') claiming therein compensation on account of death of Daya Nand i.e.

son of the respondent-claimant in an accident, which took place on 28.12.2014, near Ded Gharat, Kandaghat involving truck/vehicle bearing registration No. HR-38-M-5943, owned by respondent No.1, driven by respondent No.2 and insured with appellant-responder No.3, awarded compensation to the tune of Rs.9,14, 000/- alongwith interest at the rate of 7.5% per annum from the date of filing of the petition till its realization in favour of the respondent-claimant. Since appellant-Insurance Company came to be saddled with liability to pay compensation being insurer of the ill-fated vehicle involved in the accident, it has approached this Court in the instant proceedings, praying therein to set aside aforesaid impugned award primarily on following grounds:-

1. Since negligence of respondent No.3 while driving the ill-fated vehicle never came to be proved in accordance with law by the claimant by leading cogent and convincing evidence, there was no occasion, if any, to award compensation, if any, under Section 166 of the Act on account of death of deceased Daya Nand.

2. In the absence of any evidence regarding employment of deceased as helper in the Crane of Laxmi Narayan, learned Tribunal below ought not have assessed income of deceased at the rate of Rs.6000/- per month. Since age of the claimant i.e. mother of the deceased .

was '57' years, tribunal below while assessing the compensation wrongly applied multiplier of '16' because it taking into consideration the age of the mother, ought to have applied multiplier of "7".

2. Precisely, the facts of the case, as emerge from the record are that on 28.12.2014, near Ded Gharat, Kandaghat, a vehicle bearing registration No.HR-38-M-5943 being driven by respondent No.3, Maryam Ali hit the deceased Daya Nand i.e. son of the claimant-responder, while he was crossing the road, as a consequence of which, he suffered multiple injuries. Though, the deceased was rushed to Zonal Hospital, Solan, but he was declared brought dead by the Medical Officer. The mater was reported to the police and FIR under sections 279 and 304-A IPC was registered at police Station, Kandaghat, District Solan, H.P. Since claimant being mother of the deceased was totally dependent upon the earning of her son, she filed a petition under Section 166 of the Act stating therein that her son Daya Nand died on account of rash and negligent driving of respondent No.3. She claimed that age of her son was 37 years and his monthly income was Rs.9000/- per month as he was working as helper in the Crane of Laxmi Naryan. She claimed that deceased used to contribute major portion of his income towards the family and on account of his untimely death, she has not only suffered financial loss but has been also deprived of love and affection of her deceased son and as such, entitled to compensation to the tune of Rs.50,00,000/-

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3. Aforesaid claim set up by the respondent-claimant came to be contested by respondents No.2 and 3 by filing reply taking therein preliminary objections regarding maintainability, cause of action and estoppel. On merits, though aforesaid respondents admitted the involvement of the vehicle in question in the accident on the relevant date and time, but specifically denied that the accident took place due to rash and negligence driving of respondent No.3. Both the respondents, as mentioned hereinabove, claimed that the accident took place due to negligence of the deceased himself as he all of a sudden came on the road and struck against the vehicle in question. Aforesaid respondents also

not disputed the lodging of the FIR against respondent No.3 at police Station Kandaghat, but claimed that false FIR has been registered against him by some vested interest. Respondent Nos. 2 and 3 also denied the age as well as income of the deceased, as claimed in the petition. Lastly, aforesaid respondents claimed that since vehicle in question was insured with appellant's insurance company at the time of accident, it is liable to pay the compensation in case respondent's claimant is held entitled to compensation.

4. Appellant's Insurance Company filed separate reply stating therein that driver of the vehicle in question was not having valid and effective driving licence and the vehicle in question was being plied without valid documents and in violation of the terms and conditions of .

the insurance policy and as such, it is not liable to indemnify the insured.

On merits, appellant's Insurance Company denied that accident was the result of rash and negligent driving of the vehicle in question by its driver.

Appellant's Insurance Company also denied the claim of the respondent's claimant with regard to income of deceased at the rate of Rs.9000/- per month.

5. On the basis of pleadings adduced on record by the respective parties, Tribunal below vide orders dated 30.11.2015 and 19.09.2016 framed following issues: "1. Whether the accident was the result of rash and negligent driving of the vehicle in question by respondent No.2 and the deceased Daya Nand died in the said accident? OPP.

2. If issue No.1 is proved in affirmative, whether the petitioner is entitled to compensation. If so to what amount and from whom? OPP.

3. Whether the petition is not maintainable? OPR.

4. Whether the driver of the vehicle in question was not holding valid and effective driving license at the time of accident. If so its effect? OPR-3.

5. Whether the vehicle in question was being plied without documents and in violation of terms and conditions of the insurance policy. If so its effect? OPR-3.

5-A. Whether the petitioner has no cause of action to file the present petition? OPR 1 & 2.

5-B. Whether the petitioner is estopped from filing this petition due to her act and conduct? OPR 1&2.

5-C. Whether the petitioner has not come to the Court with clean hands and has suppressed the material facts? OPR-3.

6. Relief:-

6. Subsequently, on the basis of the pleadings as well as evidence adduced on record by the respective parties, learned Tribunal below held respondent claimant entitled to compensation to the tune of Rs.9,14,000/- alongwith interest at the rate of 7.5% per annum from the date of filing of the petition till its realization. Since appellant Insurance Company came to be saddled with liability to pay aforesaid compensation, it has come to this Court in the instant proceedings, praying therein to set aside aforesaid impugned award on the grounds, as have been taken note hereinabove.

7. Mr. G.C.Gupta, learned Senior Counsel duly assisted by Ms. Meera Devi, Advocate representing the appellant Insurance Company, argued that since to file a petition under Section 166 of the Act, it was incumbent upon the claimant to prove negligence, if any, on the part of the driver of the offending vehicle and such onus placed upon claimant was never discharged by her by leading cogent and convincing evidence, tribunal below has erred in awarding compensation in favour of the respondent claimant. Learned counsel representing the appellant, while making this Court to peruse evidence led on record by the respective parties, submitted that save and except statement of respondent claimant (PW1), there is no cogent and convincing evidence with regard to negligence, if any, of respondent No.3, who at the time of the accident was driving the ill-fated vehicle. He submitted that since respondent

claimant was not present on the spot at the time of the accident, her statement with regard to rash and negligent driving, if any, by respondent No.3 could not be made basis by learned Tribunal below while awarding compensation. He further submitted that though with a view to prove factum with regard to accident, respondent claimant placed on record copy of FIR Ex.PW1/A, but since person, who had recorded the FIR never came to be examined, same could not be read in evidence. Mere filing of FIR is not sufficient to conclude factum with regard to negligence of respondent No.3 while driving the ill-fated vehicle. He stated that it is well settled by now that onus to prove negligence, if any, on the part of the driver is on the claimant, but since in the case at hand claimant was not unable to discharge aforesaid onus placed upon her, court below ought not have granted compensation under Section 166 of the Act, for which purpose negligence is *sina qua non*.

8. Mr. G.C.Gupta, learned Senior counsel further submitted that though during the case at hand respondent claimant claimed that her son was in receipt of Rs.9000/- per month as salary from one Laxmi Naryan, but since no payment voucher/ pay slip ever came to be placed on record, there was no occasion, if any, for the Tribunal below to take aforesaid amount in consideration while assessing the income.

9. Mr. Anirudh Sharma, learned counsel representing the respondent claimant, while refuting aforesaid submission of learned

Senior counsel representing the appellant Insurance company, submitted that onus to prove negligence placed on claimant was successfully discharged by her by placing on record copy of FIR Ex.PW/A, wherein factum with regard to rash and negligent of respondent No.3 stood recorded. He further submitted that since FIR was duly proved in accordance with law by the police official HC Bhagat Singh (PW), it cannot be said that same was not proved in accordance with law. He submitted that otherwise also factum with regard to accident as well as involvement of ill-fated vehicle is not in dispute and as such, factum of deceased having suffered injuries in the accident stands duly established on account of his being hit by the vehicle No. HR 38 M 5943 being driven by the driver in rash and negligent manner. He further submitted that though in the case at hand, respondent-claimant claimed that her son was in receipt of Rs.9000/- per month as salary/ wages from the person namely Laxmi Narayan, but since such fact never came to be placed on record by placing any documentary evidence, learned Tribunal below having taken note of the statement of Sh. Laxmi Narayan (PW) that deceased was employed with him as helper in a Crane, rightly assessed monthly income of deceased as Rs.6000/- which amount can be easily earned by doing work on daily wages. He further submitted that as per judgment passed by Hon'ble Apex Court in case titled as Sarla Verma (Smt) and others versus Delhi Transport Corporation and .

another, reported in (2009)6 Supreme Court Cases 121, multiplier is to be applied keeping in view the age of the deceased not the claimant and as such, learned Tribunal below cannot be said to have committed illegality while applying the multiplier of "16" keeping in view the age of the deceased, which at the relevant time was 35 years.

10. Having heard learned counsel representing the parties and perused the evidence, be it ocular or documentary led on record by the respective parties as well as pleadings, this Court finds that factum with regard to accident and involvement of the vehicle being driven by respondent No.3 is not in dispute, rather stands admitted. As per appellant Insurance Company, claimant failed to prove negligence, if any, of respondent No.3 while driving the vehicle in question.

11. No doubt, in the case at hand, claimant, Smt. Sheela Devi while deposing as PW though fully supported the averments as contained in the petition, as have been taken note hereinabove, but she also admitted in her cross-examination that she was not present at the spot at the time of occurrence. However, she denied the suggestion put to her that the accident was not the result of rash and negligent driving of the vehicle in question by its driver. This witness deposed that deceased, who was her son, on 28.12.2014, at about 9.00 PM was crossing the road and he was hit by the truck in question being driven in rash and negligent manner by respondent No.3, causing multiple injuries to the .

deceased, who though was rushed to the hospital, but succumbed to his injuries. Cross-examination conducted upon this witness, clearly reveals that opposite party was unable to extract something contrary what this witness stated in her examination. In chief, save and except her admission to the fact that she was not present at the time of the accident Besides above, HC Bhagat Singh (PW) placed on record FIR Ex.PW1/A , wherein factum with regard to death of deceased Daya Nand on account of rash and negligent of the vehicle by respondent No.3 stands duly recorded. This witness in his cross-examination admitted that he was not present on the spot at the time of the accident

and factum with regard to rash and negligent driving by respondent No.3 was recorded on the basis of statement made by the complainant.

12. Learned Senior counsel representing the appellant Insurance Company argued that since person namely Sh. Roshan Lal, at whose instance FIR Ex.PW1/A was lodged never came to be examined, mere fact, if any, with regard to rash and negligent driving recorded in the FIR Ex.PW1/A is/was not sufficient to conclude negligence, if any, on the part of the driver i.e. respondent No.3.

13. In support of his aforesaid submissions, he placed reliance upon judgments in Oriental insurance Company Limited versus Premlata Shukla and others, 2017 (13) SCC 446, Surrender Kumar Arora and another vs. Dr. Manoj Bisla and others, 2012(4) SCC 552, .

National Insurance Company Limited versus Daleep Singh and another, reported in Latest HLJ 2019(HP) 243, Oriental Insurance Company Ltd. versus Nisha Kumari and others, reported in Latest HLJ 2022(HP)(2) 893, Smt. Usha Dhraik and others" versus M/s Himachal Baspa Power Company Limited and others, reported in Latest HLJ 2020 (HP)(1) 39.

14. After having carefully perused the aforesaid judgments relied upon by learned Senior Counsel representing the appellant Insurance Company, this Court finds that there cannot be any quarrel with the aforesaid proposition of law laid down by the Hon'ble Apex Court as well as this Court in number of judgments that rash and negligent driving is sine qua non for maintaining the claim petition seeking compensation in terms of provisions of Section 166 of the Act. Hon'ble Apex Court in Oriental insurance Company Limited versus Premlata Shukla and others, reported in 2017 (13) SCC 446, has categorically held that insurer would be liable to reimburse the insured to the extent of the damage payable by the owner to the claimants subject of course to the limit of its liability as laid down in the Act of the contract of insurance and proof of rashness and negligence on the part of the driver of the vehicle is therefore, sine qua non for maintaining an application under Section 166 of the Act.

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15. Hon'ble Apex Court in Surrender Kumar Arora and another vs. Dr. Manoj Bisla and others, reported in 2012(4) SCC 552, has observed that in a petition under Section 166 of the Act onus is upon the claimant to prove rash and negligent driving. Had he filed petition under Section 163 of the Act then the dicta of this Court in case of Kaushnuma Begum (Smt) & Ors. (AIR 2001 SC 485) would have come to the assistance of the claimants, wherein it is not required for the claimants to prove rash and negligent driving. The victim of an accident or his dependents have an option either to proceed under Section 166 of the Act or under Section 163 of the Act. Once they approach the Tribunal under Section 166 of the Act, they are necessarily required to discharge the onus placed upon them with regard to rash and negligent driving. However, this Court cannot lose sight of the fact that plea of negligence set up by the claimant is required to be decided by the tribunal on the touchstone of preponderance of probability and certainly not on the basis of proof beyond reasonable doubt.

16. In the case at hand, PW□2, Smt. Sheela Devi, while making deposition before the court below, specifically stated with regard to accident of her son on 28.12.2014 after being hit by the truck bearing registration No. HR□38□M□5943 being driving by respondent No.3 in rash and negligent manner. Though, she also admitted that she was not present at the spot at the time of the accident, however, with a view to .

prove factum with regard to rash and negligent driving of respondent No.3, she examined PW□, HC Bhagat Singh, who produced FIR Ex.PW1/A, wherein factum with regard to rash and negligent driving of respondent No.3 stood recorded. True, it is that aforesaid witness in cross□examination admitted that he had not conducted the investigation but nowhere denied contents of the FIR.

17. Learned Senior Counsel representing the appellant□Insurance Company argued that since FIR was recorded on the basis of the statement made by Roshan Lal son of Sh. Chet Ram, contents of the same cannot be said to be proved merely on account of its exhibition, rather for that purpose claimant ought to have examined complainant Roshan Lal. In support of his aforesaid submission, he placed reliance upon the judgment passed by Co□ordinate Bench of this Court in National Insurance Company Limited versus Daleep Singh and another, reported in Latest HLJ 2019(HP) 243, wherein though Court held that the contents of FIR cannot be relied upon as the person who has lodged the FIR has not stepped into the witness box to prove the contents, but yet upheld the order of compensation on the ground that he was hit by the offending vehicle.

18. Mr. G.C.Gupta, learned Senior Counsel also placed reliance upon the judgment passed by Co□ordinate Bench of this Court in .

Oriental Insurance Company Ltd. versus Nisha Kumari and others, reported in Latest HLJ 2022(HP)(2) 893, wherein Court held that initial onus to prove rash and negligent driving is upon the claimants and same was duly discharged by the claimants by leading undisputed testimony of spot/eye witness. Similarly, Co□ordinate Bench of this Court in Smt. Usha Dhraik and others versus M/s Himachal Baspa Power Company Limited and others, reported in Latest HLJ 2020(HP)(1) 39, while holding that rash and negligent driving is sine qua non for maintaining the claim petition seeking compensation in terms of the provisions of Section 166 of the Motor Vehicles Act held that the plea of negligence set up by the claimants is required to be decided by the learned tribunal on the touchstone of preponderance of probability and certainly not on the basis of proof beyond reasonable doubt.

19. In the instant case, respondent/claimant, who was admittedly not present on the spot, with a view to prove the contents of her complaint examined herself as PW□2 and fully corroborated and supported the averments contained in the same. She in her statement deposed that deceased, who was her son, on 28.12.2014, at about 9 PM was crossing the road and he was hit by the truck in question being driven in rash and negligent manner by its driver, causing multiple injuries to the deceased. In her cross□examination, though she admitted that she was not present on the spot at the time of occurrence but .

specifically denied that the accident was not the result of rash and negligent driving of the vehicle. By examining PW□ HC, Bhagat Singh, who placed on record FIR Ex.PW1/A, wherein factum with regard to rash and negligent driving of respondent No.3 while driving the offending vehicle stand recorded, she specifically discharged initial onus placed upon her to prove factum with regard to rash and negligent driving and thereafter onus actually had shifted upon the appellant□Insurance company and other respondents to prove that accident did not occur on account of the rash and negligent driving of the driver, rather on account of negligence of the deceased. However, no cogent and convincing evidence ever came to be placed on record by the respondents to discharge onus shifted upon them qua the rash and negligent driving.

20. Owner of the vehicle Sh. Sanjeev Gupta (RW□) though stated that false FIR has been registered against the driver of the vehicle in question and the vehicle in question was being driven by respondent No.3 in slow speed and in a cautious manner on the left side of the road, but same is not sufficient to rebut the case of the claimant that her deceased son died on account of rash and negligent driving by respondent No.3, especially when he admitted in his cross□examination that he was not present on the spot at the time of the accident.

Interestingly, this witness in his cross□examination stated that since he was not present on the spot and as such, he cannot say as to due to .

whose fault, the accident has took place.

21. Respondent No.3, Maryam Ali, driver of the ill□tated vehicle while deposing RW□2 deposed that he was driving the vehicle in question at the relevant date and time with slow speed on the left side of the road and accident did not occur on account of the rash and negligent driving of the vehicle in question being driven by him. However, in his cross□examination, he admitted that FIR has been registered against him regarding the accident. Statements of RW□2 and RW□3 are not corroborated/ supported by any other material on record. No witness has been examined by the appellant□Insurance Company to support/ corroborate their plea that the accident was not the result of rash and negligent driving of the vehicle in question by respondent No.3, rather it was on account of negligence of the deceased. Careful perusal of testimonies of RW□ and RW□2 proves factum with regard to injuries suffered by the deceased after his being hit by the vehicle in question being driven by respondent No.3. Since respondent No.3 admitted in his cross□examination factum with regard to FIR registered against him, wherein factum with regard to rash and negligent driving stand recorded, it cannot be said that PW□2 i.e. claimant failed to discharge onus placed upon her with regard to rash and negligent driving. Merely denial of rash and negligent by RW□ and RW□2 itself may not be sufficient to conclude that respondent/claimant was unable to prove rash and negligent driving, .

especially when both the witnesses have categorically admitted factum with regard to lodging of FIR, wherein factum with regard to rash and negligent driving stands recorded. No doubt, in the case at hand, Roshan Lal, at whose instance FIR Ex.PW1/A came to be recorded was not examined, but on account of his non□examination, version put forth by PW□2 with regard to rash and negligent driving of respondent No.3 cannot be brushed aside, especially when FIR Ex.PW/1

wherein factum with regard to accident stands recorded, was duly proved in accordance with law.

22. Since in the instant case, PW□2, respondent/claimant discharged initial burden placed upon her to prove rash and negligent driving by making deposition with regard to accident and thereafter by placing on record FIR Ex.PW1/A, it cannot be said that respondent/claimant was unable to prove rash and negligent driving.

Since she successfully proved beyond reasonable doubt that her deceased son died on account of the injuries suffered by him after being hit by the vehicle being driven by respondent No.3 in rash and negligent manner, no illegality cannot be said to have been committed by the court below while holding the respondent/claimant entitled for compensation.

23. Co□rdinate Bench of this Court in FAO No.119 of 2012, decided on 10.03.2017, titled as Dila Ram versus Rekha Devi and others, held .

that standard of proof in the claim petition is different than that of the criminal cases. It is beaten law of land that the tribunal has to conduct the trial of the claim petition and determine the same by adopting summary procedure. Besides above, Co□rdinate Bench of this Court has also held in the aforesaid judgment that findings recorded by criminal court in acquittal cannot be a ground to defeat the right of the claimants even if the driver is acquitted in the criminal proceedings that may not be ground for dismissal of the claim petition.

24. At this stage, it would be profitable to reproduce para Nos.

14, 15, 16, 17, 19 and 20 of the aforesaid judgment herein:□"14. The standard of proof in the claim petitions is different than that of the criminal cases. It is beaten law of and that the Tribunal has to conduct the trial of the claim petitions and determine the same by adopting summary procedure.

15. The Apex Court in a case titled Dulcina Fernandes and others vs. Joaquim Xavier Cruz and another, reported in (2013) 10 Supreme Court Cases 646 has laid down the same principle and held that strict proof and strict links are not required.

16. The same principle has been laid down by this Court in a series of cases.

17. A Single Judge of this Court in FAO No. 127 of 1999, titled as Bimla Devi and others versus Himachal Road Transport Corporation and others, decided on 22.08.2005, held that the claimants have to prove the case by leading cogent evidence and applied the mandate of CPC read with the Evidence Act, was questioned before the Apex Court by the medium of Civil Appeal No. 2538 of 2009, titled as Bimla Devi & Ors. Versus Himachal Road Transport Corpn. & Ors., reported in 2009 AIR SCW 4298, and the Apex Court set aside the said judgment and held that strict proof is not required. It is apt to reproduce paras 2 and 12 to 15 of the judgment herein:

"2. This appeal is directed against a judgment and .

order dated 22.8.2005 passed by the High Court of Himachal Pradesh, Shimla in FAO No. 127 of 1999 whereby and where under an appeal preferred against a judgment and award dated 28.10.1998 passed by the Motor Accident Claims Tribunal II [MACT (I), Nahan] in MAC Petition No. 21 NL/2 of 1997, was set aside.

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xxx

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12. While dealing with a claim petition in terms of Section 166 of the Motor

Vehicles Act, 1988, a Tribunal *stricto sensu* is not bound by the pleadings of the parties; its function being to determine the amount of fair compensation in the event an accident has taken place by reason of negligence of that driver of a motor vehicle. It is true that occurrence of an accident having regard to the provisions contained in Section 166 of the Act is a *sine qua non* for entertaining a claim petition but that would not mean that despite evidence to the effect that death of the claimants predecessor had taken place by reason of an accident caused by a motor vehicle, the same would be ignored only on the basis of a post mortem report *vis à vis* the averments made in a claim petition.

13. The deceased was a Constable. Death took place near a police station. The post mortem report clearly suggests that the deceased died of a brain injury. The place of accident is not far from the police station. It is, therefore, difficult to believe the story of the driver of the bus that he slept in the bus and in the morning found a dead body wrapped in a blanket.

If the death of a constable has taken place earlier, it is wholly unlikely that his dead body in a small town like Dharampur would remain undetected throughout the night particularly when it was lying at a bus stand and near a police station. In such an event, the court can presume that the police officers themselves should have taken possession of the dead body.

14. The learned Tribunal, in our opinion, has rightly proceeded on the basis that apparently there was absolutely no reason to falsely implicate the respondent Nos. 2 and 3. Claimant was not at the place of occurrence.

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She, therefore, might not be aware of the details as to how the accident took place but the fact that the First Information Report had been lodged in relation to an accident could not have been ignored. Some discrepancies in the evidences of the claimant's witnesses might have occurred but the core question before the Tribunal and

consequently before the High Court was as to whether the bus in question was involved in the accident or not.

For the purpose of determining the said issue, the Court was required to apply the principle underlying burden of proof in terms of the provisions of Section 106 of the Indian Evidence Act as to whether a dead body wrapped in a blanket had been found at the spot r at such an early hour, which was required to be proved by the respondent Nos. 2 and 3.

15. In a situation of this nature, the Tribunal has rightly taken a holistic view of the matter. It was necessary to be borne in mind that strict proof of an accident caused by a particular bus in a particular manner may not be possible to be done by the claimants. The claimants were merely to establish their case on the touchstone of preponderance of probability. The standard of proof beyond reasonable doubt could not have been applied. For the said purpose, the High Court should have taken into consideration the respective stories set forth by both the parties."

18. The claimants have, prima facie, proved that the driver of the offending vehicle had driven the same rashly and negligently at the relevant point of time, hit the same with stationary motorcycle, due to which deceased Ram Lal sustained injuries and succumbed to the same.

19. Moreover, the findings recorded by the Criminal Court in acquittal cannot be a ground to defeat the rights of the claimants. Even if the driver is acquitted in the criminal proceedings, that may not be a ground for dismissal of the claim petitions.

20. My this view is fortified by the judgment rendered by the Apex Court in N.K.V. Bros. (P.) Ltd. versus M. Karumai Ammal and others etc., reported in AIR 1980 Supreme Court 1354, wherein a bus hit an overhanging high tension wire resulting in 26 casualties. The driver earned acquittal in the criminal case on the score that the tragedy that happened was an act of God. The Apex Court held that .

the plea that the criminal case had ended in acquittal and that, therefore, the civil suit must follow suit, was rightly rejected by the Tribunal. It is apt to reproduce para 2 of the judgment herein:

"2. The Facts: A stage carriage belonging to the petitioner was on a trip when, after nightfall, the bus hit an overhanging high tension wire resulting in 26 casualties of which 8 proved instantaneously fatal. A criminal case ensued but the accused driver was 11 acquitted on the score that the tragedy that happened was an act of God. The Accidents Claims Tribunal which tried the claims for compensation under the Motor Vehicles Act, came to the conclusion, affirmed by the High Court, that, despite the screams of the r passengers about the dangerous overhanging wire ahead, the rash driver sped towards the lethal spot.

Some lost their lives instantly; several lost their limbs likewise. The High Court, after examining the materials, concluded:

"We therefore sustain the finding of the Tribunal that the accident had taken place due to the rashness and negligence of R.W.1 (driver) and consequently the appellant is vicariously liable to pay compensation to the claimant.

"

The plea that the criminal case had ended in acquittal and that, therefore, the civil suit must follow suit, was rejected and rightly. The requirements of culpable rashness under Section 304A, I.P.C. is more drastic than negligence sufficient under the law of tort to create liability. The quantum of compensation was moderately fixed and although there was, perhaps, a case for enhancement, the High Court dismissed the cross claims also. Being questions of fact, we are obviously unwilling to reopen the holdings on culpability and compensation."

25. Though, learned counsel for the appellant Insurance Company also argued that Tribunal below wrongly decided issue No.4 that "whether driver of the vehicle was not holding valid and effective driving licence at the time of the accident, but since onus to prove such issue was upon the appellant Insurance company and it failed to discharge such onus, it cannot be said that Tribunal below wrongly .

decided aforesaid issue. None of the witnesses adduced on record by the appellant Insurance company stated something specific with regard to validity of the licence possessed by the driver at the time of alleged accident.

26. Another ground raised by the appellant Insurance company with regard to income of the deceased assessed at the rate of Rs.6000/-per month also deserves outright rejection being devoid of any merit. In the instant case, respondent/claimant claimed that her deceased son was in receipt of Rs.9000/-per month as salary from person namely, Laxmi Naryan as he was working as helper in the Crane. Factum with regard to employment of deceased as helper on the crane owned by Laxmi Narayan stands duly proved on record with the statement of PW-3, Laxmi Naryan, but admittedly no documentary evidence with regard to his salary Rs.9000/-per month ever came to be placed on record and as such, tribunal below proceeded to assess income of the deceased to be Rs. 6000/-presuming/considering him to be daily wage worker. Needless to say, in the cases, where party claiming compensation fails to prove income by leading cogent and convincing evidence, Court can proceed to assess the income on the basis of occupation/profession of deceased/injured. Hon'ble Apex Court as well as this Court in catena of cases have held that where no cogent and convincing evidence with regard to income of the deceased available, Tribunal can proceed to .

assess the income on the basis of minimum wages Act. Since it is duly proved on record that deceased was working as a helper on the crane, court below rightly assessed his income as Rs.6000/-per month.

27. It stands duly settled in Sarla Verma case(supra) that multiplier is to be applied taking into consideration the age of the deceased/injured not the claimant and as such, no illegality can be said to have been committed by learned Tribunal below while applying the multiplier of '16'.

28. At this stage, learned Senior counsel for the appellant Insurance Company argued that the learned Tribunal has erred in making addition of 50% to the established income of deceased on account of loss of future prospects, since the deceased was not a permanent employee and as such, only 40% addition towards loss of future prospects ought to have been made. He further argued that the lump sum amount awarded by learned Tribunal below towards conventional head is also not in consonance with the law laid down by Hon'ble Apex Court in National Insurance Company Limited vs. Pranay Sethi and others, AIR 2017, SC 5157.

29. Similarly, learned counsel for the claimant also argued that separate amounts under the conventional heads like funeral expenses, loss of estate and loss of consortium ought to have been awarded by learned tribunal below, which has not been done in the instant case, as .

such, impugned award deserves to be enhanced accordingly.

30. At this stage, It would be profitable to take note of relevant paras of judgment rendered by Hon'ble Apex Court in Pranay Sethi case (supra):¶59. In view of the aforesaid analysis, we proceed to record our conclusions:¶

(i) The two Judge Bench in Santosh Devi should have been well advised to refer the matter to a larger Bench as it was taking a different view than what has been stated in Sarla Verma, a r judgment by a coordinate Bench. It is because a coordinate Bench of the same strength cannot take a contrary view than what has been held by another coordinate Bench.

(ii) As Rajesh has not taken note of the decision in Reshma Kumari, which was delivered at earlier point of time, the decision in Rajesh is not a binding precedent.

(iii) While determining the income, an addition of 50% of actual salary to the income of the deceased towards future prospects, where the deceased had a permanent job and was below the age of 40 years, should be made. The addition should be 30%, if the age of the deceased was between 40 to 50 years. In case the deceased was between the age of 50 to 60 years, the addition should be 15%. Actual salary should be read as actual salary less tax.

(iv) In case the deceased was self-employed or on a fixed salary, an addition of 40% of the established income should be the warrant where the deceased was below the age of 40 years. An addition of 25% where the deceased was between the age of 40 to 50 years and 10% where the deceased was between the age of 50 to 60 years should be regarded as the necessary method of computation. The established income means the income minus the tax component.

(v) For determination of the multiplicand, the deduction for personal and living expenses, the tribunals and the courts shall be guided by paragraphs 30 to 32 of Sarla Verma which we have

reproduced hereinbefore.

(vi) The selection of multiplier shall be as indicated in the Table in Sarla Verma read with paragraph 42 of that judgment.

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(vii) The age of the deceased should be the basis for applying the multiplier.

(viii) Reasonable figures on conventional heads, namely, loss of estate, loss of consortium and funeral expenses should be Rs.

15,000/- Rs. 40,000/- and Rs. 15,000/- respectively. The aforesaid amounts should be enhanced at the rate of 10% in every three years."

31. Having perused the aforesaid judgment rendered by Hon'ble Apex Court in Pranay Sethi case (supra), this Court finds merit in the submission of learned counsel representing the appellant Insurance Company that since petitioner was not permanent employee, rather he was on fixed salary, learned Tribunal below, ought not have made addition of 50% to the established income of the deceased, on account of loss of future prospects, rather, the same ought to have been 40%, in view law laid down in Pranay Sethi case (supra). Also, this Court finds force in the submission of learned counsel for the claimant that separate amounts under conventional heads i.e. loss of estate, funeral expenses at the rate of Rs. 15,000/- each and further Rs. 40,000/- on account of loss of consortium ought to have been awarded by learned Tribunal below, as such, the award deserves to be modified accordingly.

32. While inviting attention of this Court to the judgment rendered by Hon'ble Apex Court in Magma General Insurance Co. Ltd.

v. Nanu Ram and Ors., Civil Appeal No. 9581 of 2018 decided on 18.9.2018, learned counsel representing the claimant contended that sum of Rs.40,000/- is required to be awarded in favour of the claimant .

on account of filial consortia, which as per aforesaid judgment ought to have been Rs.40,000/- Hon'ble Apex Court in Magma General Insurance Co. Ltd. (supra) has held as under:

"8.7 A Constitution Bench of this Court in Pranay Sethi (supra) dealt with the various heads under which compensation is to be awarded in a death case. One of these heads is Loss of Consortium. In legal parlance, "consortium" is a compendious term which encompasses 'spousal consortium', 'parental consortium', and 'filial consortium'.

The right to consortium would include the company, care, help, comfort, guidance, solace and affection of the deceased, which is a loss to his family. With respect to a

spouse, it would include sexual relations with the deceased spouse.

Spousal consortium is generally defined as rights pertaining to the relationship of a husband wife which allows compensation to the surviving spouse for loss of "company, society, cooperation, affection, and aid of the other in every conjugal relation."

4 Parental consortium is granted to the child upon the premature death of a parent, for loss of "parental aid, protection, affection, society, discipline, guidance and training." Filial consortium is the right of the parents to compensation in the case of an accidental death of a child. An accident leading to the death of a child causes great shock and agony to the parents and 3 Rajesh and Ors.

vs. Rajbir Singh and Ors. (2013) 9 SCC 54 4 BLACK'S LAW DICTIONARY (5th ed. 1979) family of the deceased. The greatest agony for a parent is to lose their child during their lifetime. Children are valued for their love, affection, companionship and their role in the family unit.

Consortium is a special prism reflecting changing norms about the status and worth of actual relationships. Modern jurisdictions world over have recognized that the value of a child's consortium far exceeds the economic value of the compensation awarded in the case of the death of a child. Most jurisdictions therefore permit parents to be awarded compensation under loss of consortium on the death of a child. The amount awarded to the parents is a compensation for loss of the love, affection, care and companionship of the deceased child. The Motor Vehicles Act is a beneficial legislation aimed at providing relief to the victims or their families, in cases of genuine claims. In case where a parent has lost their minor child, or unmarried son or daughter, the parents are entitled to be awarded loss of consortium under the head of Filial Consortium.

Parental Consortium is awarded to children who lose their parents in motor vehicle accidents under the Act.

A few High Courts have awarded compensation on this count⁵. However, there was no clarity with 5 Rajasthan High Court in Jagmala Ram @ Jagmal Singh & Ors. v. Sohi Ram & Ors 2017 (4) RLW 3368 (Raj); Uttarakhand High Court in Smt. Rita Rana & Anr. v. Pradeep Kumar & 6 Ors. respect to the principles on which .

compensation could be awarded on loss of Filial Consortium.

The amount of compensation to be awarded as consortium will be governed by the principles of awarding compensation under 'Loss of Consortium' as laid down in Pranay Sethi (supra). In the present case, we deem it appropriate to award the father and the sister of the deceased, an amount of Rs. 40,000 each for loss of Filial Consortium."

33. Now, in view of the law laid down in Pranay Sethi's case(supra), after making 50% deduction towards self expenses, as there is only one member in the family i.e. present claimant and making addition of 40% to the established income, the total income of the deceased, can be calculated in

following manner: □ Amount (Rs.) Established monthly income of 6000 deceased Addition of 40% i.e. $6000 \times 40/100 = 2400$ Net monthly income $6000 + 2400 = 8400$ 50% deducted towards personal 4200 expenses Net monthly income 4200 Annual loss of dependency $806,400 = 4200 \times 12 \times 16$

34. Similarly, amounts of Rs.15,000/□each on account of funeral expenses and loss of estate and further Rs.40,000/□on account of loss of filial consortium are required to be awarded in favour of the claimant.

35. Learned counsel for the appellant □ Insurance Company argued that the appellate court cannot enhance the amount awarded by learned tribunal below, however, this court does not find any force in such argument. Reliance in this regard is placed upon *Ranjana Prakash and others versus Divisional Manager and another*, (2011) 14 .

Supreme Court cases 639, wherein, it has been held that this Court enjoys vast power to enhance the amount of compensation even in the appeal preferred by the Insurance company, if it comes to the conclusion that the learned Tribunal below has not awarded just and fair compensation.

36. In view of detailed discussion made hereinabove, award passed by Tribunal below is modified in the following manners: □ Head Amount (Rs.) Loss of dependency 806,400 funeral expenses 15,000 Loss of estate 15,000/□ Filial consortium payable to the claimant 40,000 Total compensation 8,76,400

37. Consequently, in view of detailed discussion made herein above and law laid down by the Hon'ble Apex Court, present appeal is partly allowed and impugned Award passed by learned Tribunal below is modified to the aforesaid extent only.

38. All pending miscellaneous applications, if any, are disposed of. Interim directions, if any, are vacated.

15th November, 2022
(shankar)

(Sandeep Sharma),
Judge